

21, 78 (1974) (concurring opinion). The papers in both of these areas—family and political decisionmaking—are of the most private nature, enjoying the highest status under our law. MR. JUSTICE BRENNAN recently put it this way: “Personal letters constitute an integral aspect of a person’s private enclave.” *Fisher v. United States*, 425 U. S. 391, 427 (1976) (concurring in judgment). An individual’s papers, he said, are “an extension of his person.” *Id.*, at 420. MR. JUSTICE MARSHALL made the same point: “Diaries and personal letters that record only their author’s personal thoughts lie at the heart of our sense of privacy.” *Couch v. United States*, 409 U. S. 322, 350 (1973) (dissenting opinion). In discussing private papers, he referred even more emphatically to the “deeply held belief on the part of the Members of this Court throughout its history that there are certain documents *no person ought to be compelled to produce at the Government’s request.*” *Fisher v. United States*, *supra*, at 431–432 (emphasis supplied) (concurring in judgment). This echoes Lord Camden’s oft-quoted description of personal papers as a man’s “dearest property.” *Boyd v. United States*, 116 U. S. 616, 628 (1886).

One point emerges clearly: The papers here involve the most fundamental First and Fourth Amendment interests. Since the Act asserts *exclusive* Government custody over *all* papers of a former President, the Fourth Amendment’s prohibition against unreasonable searches and seizures is surely implicated.²⁸ Indeed, where papers or books are the subject

²⁸ The fact that GSA initially secured possession of the Presidential papers through the agreement with the former President does not change the fact that the agency was commanded by Congress to take exclusive custody of and retain all Presidential historical materials. Moreover, everyone admits that the Act contemplates a careful screening process by Government agents. The fact that the governmental intrusion is non-criminal in nature does not, of course, render the Fourth Amendment’s prohibitions inapplicable. See *South Dakota v. Opperman*, 428 U. S. 364 (1976).